

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, May 22, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-29725 against Detective Thomas Napolitano, Tax Registry No. 940682. This case was conferenced on May 15, 2025, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of a Command Discipline Schedule B and the total forfeiture of ten (10) vacation days, after Detective Napolitano accepted the findings of substantiation of the allegations contained in the Amended Charges and Specifications dated April 23, 2025. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES

PD 468-142 (Rev. 8-89)-2

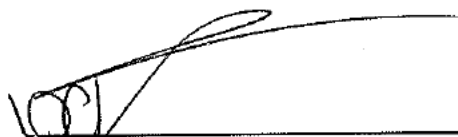
CASE NO.
C-031348BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, NAPOLITANO	FIRST THOMAS	M.I.	COMMAND 206
SHIELD NO. 3282	TAX REGISTRY NO. 940682	SOCIAL SECURITY NO.	DATE APPOINTED 01/31/2006	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

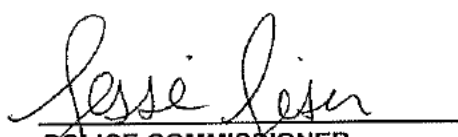
SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Detective Thomas Napolitano, on or about June 28, 2023, at approximately 1210, while assigned to CRD SPARTA GROUP and on duty, in the vicinity of 100 Church Street, New York County, provided an inaccurate official statement to the CCRB regarding drawing his firearm during his interaction with § 87(2)(b) on April 9, 2022.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER

6/3/25
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

6/6/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, June 3, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-031348 (CCRB Case No. 202202341) against Detective Thomas Napolitano, Tax No. 940682, with the recommendation that the Charges and Specifications against Detective Napolitano be dismissed and that Detective Napolitano receive a Schedule "B" Command Discipline, with the forfeiture of ten (10) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone, reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

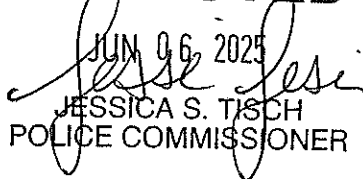


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED



JUN 06 2025
JESSICA S. TISCH
POLICE COMMISSIONER